Guidelines on Retention and Protection of Personal Data by Financial Institutions

SYNTHETIC DEMONSTRATION DOCUMENT. Modelled on the structure of banking regulation for evaluation purposes only. Not an actual regulatory instrument.

Synthetic Data Protection Authority

SYN/DPA/2025/02

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The Synthetic Data Protection Authority issues these Guidelines to data fiduciaries in the financial sector. These Guidelines shall come into force on January 1, 2025.

CHAPTER I - Preliminary

1. Scope

1.1 These Guidelines apply to every bank acting as a data fiduciary in respect of personal data of its customers.

CHAPTER II - Retention and Erasure

2. Storage Limitation

2.1 A data fiduciary shall erase the personal data of a customer no later than three years after the closure of the account, unless retention is required under any other law for the time being in force.

2.2 Personal data contained in system and application logs shall not be retained for more than 90 days.

CHAPTER III - Security Safeguards

3. Breach Notification

3.1 A data fiduciary shall notify the Authority of any personal data breach within 72 hours of becoming aware of it.

4. Awareness and Accountability

4.1 A data fiduciary shall conduct data protection awareness training for all employees handling personal data at least once a year.

4.2 A data fiduciary shall appoint a Data Protection Officer who shall be based in India.